

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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ELIJAH RAPHAEL,

Plaintiff,

SUMMONS

-against-

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
DANIEL DAVIDOFF (Shield # 8756), NYPD OFFICER
FELIX MEDINA (Shield # 6282), NYPD
OFFICER EMAD HAWATMEH (Shield # 16112) and
NYPD OFFICERS JOHN and JANE DOE #'s 1-10 (names
and numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Plaintiff Designates
Kings County
as the place of trial

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 21, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER DANIEL DAVIDOFF (Shield # 8756), 69th Command, 9720 Foster Avenue,
Brooklyn, NY 11236

NYPD OFFICER FELIX MEDINA (Shield # 6282), 77th Command, 127 Utica Avenue
Brooklyn, NY, 11213-2338

NYPD POLICE EMAD HAWATMEH (Shield # 16112), 84th Precinct, Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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ELIJAH RAPHAEL,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
DANIEL DAVIDOFF (Shield # 8756), NYPD OFFICER
FELIX MEDINA (Shield # 6282), NYPD
OFFICER EMAD HAWATMEH (Shield # 16112) and
and numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Defendants.

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Plaintiff **Elijah Raphael**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants subjected him to, among other things, violation of his 1st Amendment rights, false arrest, unlawful search and seizure, assault, battery, federal and state law malicious prosecution, cruel and unusual punishment while in custody, denial of medical treatment, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom.

Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Elijah Raphael is a resident of the State of New York, Kings County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER DANIEL DAVIDOFF, assigned Shield # 8756, employed with the 69th Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER DANIEL DAVIDOFF (Shield # 8756) is being sued in his individual capacity and official capacity.
6. NYPD OFFICER FELIX MEDINA, assigned Shield # 6282, employed with the 77th Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD OFFICER FELIX MEDINA (Shield # 6282) is being sued in his individual capacity and official capacity.
8. NYPD OFFICER EMAD HAWATMEH, assigned Shield # 16112, employed with the 84th Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. NYPD OFFICER EMAD HAWATMEH (Shield # 16112) is being sued in his individual capacity and official capacity.

10. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
11. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
12. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
13. Police Officers John and Jane Doe #'s 2-8 are being sued in his/her individual capacity and official capacity.
14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
18. The City of New York held a 50(h) hearing examination of the Plaintiff on June 4, 2020.

STATEMENT OF FACTS

19. On April 28, 2019, at approximately 5:00 p.m. at Rockaway Parkway and Farragut Road, Brooklyn, New York, several police officers from the 69th Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer Daniel Davidoff (Shield # 8756), NYPD Officer Felix Medina (Shield #6282), NYPD Officer Emad Hawatmeh (Shield #16112), and P.O. John and Jane Does #1-10, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.
20. On April 28, 2019 at approximately 5:00 p.m., Plaintiff was the front-seat passenger in a car driven by his cousin Isaiah Hightower. Hightower pulled into a legal parking spot at a Dunkin' Donuts restaurant near the intersection of Rockaway Parkway and Farragut Road. Shortly thereafter Plaintiff Raphael and Hightower were approached by defendant NYPD Officers Davidoff, Medina, Hawatmeh, and/or NYPD Officers Jane and/or John Doe #'s 1-10. Hightower was forcibly removed from the car by the defendant officers who then bent and twisted his arm and wrist and slammed his face into the hood of the car.
21. During this time, Plaintiff exited the vehicle and began a recording of the incident on his phone. Defendant NYPD officers noticed that Plaintiff was recording on his phone. They immediately approached him, placed him in handcuffs, and without consent, an arrest warrant, a lawful search

warrant, probable cause, or reasonable suspicion to believe that the plaintiff had committed a crime, falsely arrested Plaintiff. At no point did Plaintiff obstruct the police in their actions at the scene, nor was he acting in a threatening or loud manner or obstructing traffic.

22. Plaintiff was not operating the motor vehicle, had committed no infractions, and had no outstanding warrants at the time of his arrest. His arrest was solely in retaliation for videotaping the defendant NYPD officers' misconduct and abuse of Hightower. This forcible detention was in clear violation of well-established principles of free speech protections arising under the State and Federal Constitutions which make clear that the public has a right to videotape the police in public, even during violent encounters.
23. Plaintiff was detained at the 69th Precinct for hours, at times in handcuffs and at times in a holding cell. At some point during his detention at the precinct, two defendant NYPD officers believed to be defendant Officers Davidoff and Medina and/or Jane or John Doe #'s 1-10, removed Plaintiff from the holding cell, and defendant Officer Medina and/or John Doe, held Plaintiff's arms while defendant Officer Davidoff and/or John Doe punched Plaintiff in the face several times, causing a laceration to his lip, substantial pain, alarm, fear, and emotional trauma.
24. Despite being repeatedly struck, the plaintiff was not offered medical care or to be taken to the hospital.
25. Plaintiff was later transported to Brooklyn Central Booking.
26. While plaintiff was incarcerated at the 69th precinct and Brooklyn Central Booking, defendants falsely and maliciously told the Kings County District Attorney's Office that Plaintiff had committed numerous crimes, including Obstructing Governmental Administration in the Second Degree, Disorderly Conduct, Resisting Arrest, Attempted Assault in the Third Degree, Harassment in the Second Degree, and Criminal Possession of a Controlled Substance in the

Seventh Degree. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime. Plaintiff was at no time in actual or constructive possession of a controlled substance from the moment of his arrest until the moment he was released from Kings Criminal Court following his arraignment.

27. Additionally, Plaintiff at no time obstructed police actions. He committed no acts of disorderly conduct, and at no time did he assault, or attempt to assault any person, including any NYPD officers or staff.
28. Based on the defendant's false statements, the Kings County District Attorney's office chose to prosecute Plaintiff under docket CR-016546-19KN.
29. Plaintiff was incarcerated for approximately 17 hours. During his confinement, plaintiff was subjected to depraved, filthy and inhumane conditions, was assaulted by defendant officers and denied medical care.
30. On September 24, 2019, the above-stated malicious prosecution terminated in plaintiff's favor when the one charge against him was dismissed and sealed in its entirety, and the remaining charges were resolved with Adjournment in Contemplation of Dismissal, now sealed pursuant to New York Criminal Procedure Law §160.50.
31. Prior to dismissal, plaintiff attended multiple court appearances.
32. Plaintiff missed work as a result of his arrest and incarceration.

FIRST CAUSE OF ACTION

ASSAULT

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth herein. ^[1]_{SEP}

34. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff. Plaintiff was assaulted by defendant Officers Davidoff and Medina and/or John and Jane Doe while inside the 69th Precinct following his false and illegal arrest.
35. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct. ^{[[L]]}_{SEP}
36. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior. ^{[[L]]}_{SEP}

SECOND CAUSE OF ACTION

BATTERY

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth herein. ^{[[L]]}_{SEP}
38. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery. Plaintiff was forcibly held and struck repeatedly in the face by defendant Officers Davidoff and Medina and/or NYPD Officers John and Jane Doe while inside the 69th Precinct following his false and illegal arrest. ^{[[L]]}_{SEP}

39. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct. ^[1]_{SEP}
40. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of respondeat superior. ^[1]_{SEP}

THIRD CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 as if fully set forth herein.
42. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
43. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

MALICIOUS PROSECUTION

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
47. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
48. Defendants commenced and continued a criminal proceeding against plaintiff.
49. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
50. The prosecution and criminal proceedings terminated favorably to plaintiff on September 24, 2019.
51. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate their state constitutional and tort rights.
52. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.
54. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION**FAILURE TO INTERVENE**

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.
56. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, including depriving him of timely medical care and subjecting him to unlawful search and seizure, assault, and battery.
57. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
58. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
59. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
60. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION**NEGLIGENCE**

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.
62. Defendants owed a duty of care to plaintiff.
63. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so. They also deprived him of timely medical treatment of a known condition.

64. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
65. All of the foregoing occurred without any fault by plaintiff.
66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.
68. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
69. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
70. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

NINTH CAUSE OF ACTION

CRUEL AND UNUSUAL PUNISHMENT

71. The plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. By actions described herein, the individually named police officer defendants officers, each acting individually and in concert with one another, committed the acts of assault and battery on the Plaintiff while he was confined in a police holding facility by striking him in the face several times, causing the Plaintiff substantial pain and injury, and subsequently intentionally disregarded plaintiff's medical needs. Defendants refused to provide any medical treatment to the plaintiff, despite being the sole cause of his injury. This failure to provide treatment inflicted unnecessary and wanton pain upon plaintiff. As a result, plaintiff suffered severe pain and prolonged physical harm.
73. As a result of the foregoing, plaintiff was subjected to cruel and unusual punishment.
74. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

75. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
76. All of the aforementioned acts of defendants DAVIDOFF, MEDINA, HAWATMEH and NYPD OFFICERS JOHN and JANE DOE" #1-10, their agents, servants, and employees, were carried out under the color of state law.
77. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

78. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
79. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
80. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

81. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
82. As a result of the aforesaid conduct by defendant DAVIDOFF, MEDINA, HAWATMEH and POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants DAVIDOFF, MEDINA, HAWATMEH and POLICE OFFICERS “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
83. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF**UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983**

84. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
85. Plaintiff was searched by defendants DAVIDOFF, MEDINA, HAWATMEH and POLICE OFFICERS “JOHN DOE” #1-10 without an individualized reasonable suspicion that plaintiff had committed any crime or in possession of any illicit contraband or any other illegal substances.
86. As a result of the aforesaid conduct by defendants DAVIDOFF, MEDINA, HAWATMEH and POLICE OFFICERS “JOHN DOE” #1-10 plaintiff’s persons was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. Plaintiff repeatedly told defendants that he was not consenting to a search at the time of his arrest.
87. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM**DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

88. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

89. Defendants DAVIDOFF, MEDINA, HAWATMEH and POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff, alleging that he committed several serious traffic infractions when none actually occurred.
90. Defendants DAVIDOFF, MEDINA, HAWATMEH and POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office – namely, the defendants falsely informed prosecutors *inter alia*, that they observed Plaintiff commit several serious traffic infractions, when, in fact, no such infractions were observed by defendants.
91. Defendants DAVIDOFF, MEDINA, HAWATMEH and POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
92. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants DAVIDOFF, MEDINA, HAWATMEH and POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
93. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

94. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

95. Defendants DAVIDOFF, MEDINA, HAWATMEH and POLICE OFFICERS “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.
96. Defendants DAVIDOFF, MEDINA, HAWATMEH and POLICE OFFICERS “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.
97. As a result of the defendants’ failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF

FIRST AMENDMENT VIOLATION UNDER 42 U.S.C. § 1983

98. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
99. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
100. By their conduct, as described herein, and acting under color of state law to deprive the plaintiff of his right to freedom of speech under the First and Fourteenth Amendments, defendants DAVIDOFF, MEDINA, HAWATMEH and POLICE OFFICERS “JOHN DOE” #1-10 are liable for the violation of 42 U.S.C. § 1983, which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

101. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s First Amendment rights to speech by unlawfully denying him the right to freely videotape an interaction of police officers with another person by subjecting him to false arrest to deter the exercise of his First Amendment rights.
102. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN DOE” #1-8’s actions were taken in retaliation for plaintiff exercising his First Amendment rights against defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN DOE” #1-8. Specifically, defendants’ actions were taken in retaliation to plaintiff’s recording the physical altercation of his cousin, Hightower, by arresting officers. In retaliation, Plaintiff was searched and arrested without his consent by defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN DOE” #1-8.
103. As a consequence of defendants’ DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN DOE” #1-8’s actions, plaintiff suffered violations of his First and Fourteenth Amendment rights to free speech.
104. As a direct and proximate result of the defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN DOE” #1-8’s unlawful actions, plaintiff has suffered damages including, loss of liberty, economic damages, physical injuries, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment, and loss of reputation.

SEVENTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

105. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
106. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 misrepresented and falsified evidence before the Kings County District Attorney,

including false allegations that Plaintiff committed any illegal actions against defendant officers or any other individual.

107. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 did not make a complete and full statement of facts to the District Attorney.
108. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 withheld exculpatory evidence from the District Attorney.
109. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
110. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.
111. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.
112. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
113. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.
114. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.
115. Defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS “JOHN DOE” #1-8 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

116. Specifically, defendants' DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS "JOHN DOE" #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff's arrest.
117. Notwithstanding the perjurious and fraudulent conduct of defendants DAVIDOFF, MEDINA, HAWATMEH and/or POLICE OFFICERS "JOHN DOE" #1-10, the criminal proceedings were terminated in plaintiff's favor on or about September 24, 2019.
118. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

EIGHTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

119. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
120. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
121. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
- E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
- F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

122. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

123. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

124. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

125. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NYPD OFFICER DANIEL DAVIDOFF (Shield # 8756), 69th Command, 9720 Foster Avenue,
Brooklyn, NY 11236

NYPD OFFICER FELIX MEDINA (Shield # 6282), 77th Command, 127 Utica Avenue
Brooklyn, NY, 11213-2338

NYPD POLICE EMAD HAWATMEH (Shield # 16112), 84th Precinct, Brooklyn, NY 11201

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
July 21, 2021

Sydney O'Hagan, Esq. /s/ Sydney O'Hagan